# NEXTREPORTING

## PROFESSIONAL SERVICES TERMS

**Version 1.0**

### 1. PURPOSE

These Professional Services Terms ("**Professional Services Terms**") govern the provision of consultancy, implementation, configuration, onboarding, integration, training, advisory and other professional services supplied by ATEBIZ ("**Provider**") in connection with the NEXTREPORTING platform.

These Professional Services Terms supplement the General Subscription Terms and Conditions and apply only where Professional Services have been expressly included within an Order Form, Statement of Work ("**SOW**") or other written agreement executed by the Parties.

Unless expressly agreed otherwise, Professional Services are independent from the Customer's Subscription and shall not modify the scope of the SaaS Services.

### 2. NATURE OF THE SERVICES

Professional Services are provided on a best-efforts basis and consist of intellectual, technical and consulting services intended to assist the Customer in implementing, configuring and making effective use of ATEBIZ.

Professional Services may include implementation planning, project management, configuration of dashboards, integration assistance, onboarding, user enablement, migration support, reporting design, financial reporting consultancy, workshops, training sessions and other advisory activities agreed between the Parties.

Unless expressly agreed in writing, Professional Services do not include accounting advice, statutory consolidation services, tax advice, legal advice, auditing services, regulatory compliance services or management consulting.

Professional Services do not include verification of accounting records, reconciliation of financial information or validation of the integrity of data maintained within KONSOLIDATOR or any other customer systems unless expressly agreed in the applicable Statement of Work.

The Customer remains solely responsible for reviewing and validating all reports, dashboards, financial indicators, analyses and other outputs generated by

NEXTREPORTING before relying upon them for accounting, regulatory, tax, audit, management or investment purposes.

Unless expressly agreed otherwise, the Service is not intended to replace statutory financial reporting, legal consolidation processes, external audit procedures, regulatory reporting obligations or professional accounting advice.

The Customer acknowledges that the Provider does not assume responsibility for business decisions taken following recommendations or analyses produced during the provision of Professional Services.

## 3. STATEMENTS OF WORK

Each Professional Services engagement shall be described in a Statement of Work or other written document agreed by the Parties.

Each Statement of Work shall specify, where applicable, the objectives of the engagement, the scope of the services, the project assumptions, the responsibilities of each Party, the estimated timetable, applicable fees, deliverables and any specific acceptance criteria.

Where a conflict exists between these Professional Services Terms and an individual Statement of Work, the Statement of Work shall prevail solely with respect to the relevant engagement.

Any modification to an agreed Statement of Work shall be documented through a written Change Request signed by both Parties.

## 4. CUSTOMER COOPERATION

Successful delivery of Professional Services requires the active cooperation of the Customer.

The Customer shall designate an appropriately qualified project manager empowered to make operational decisions, validate deliverables and coordinate internal resources.

The Customer shall provide timely access to personnel, systems, documentation, information and facilities reasonably required for the performance of the Professional Services.

Any delay attributable to the Customer may result in corresponding adjustments to the project timetable, resource allocation and delivery schedule.

The Provider shall not be responsible for delays arising from incomplete information, unavailable personnel, delayed approvals or other circumstances within the Customer's control.

**5. PROJECT ASSUMPTIONS**

Unless otherwise expressly agreed, all project planning, effort estimates and implementation schedules are based upon the assumptions identified within the applicable Statement of Work.

Where those assumptions prove to be materially inaccurate, the Parties shall cooperate in good faith to agree appropriate adjustments to the project scope, timetable and commercial conditions.

The Provider shall not be obliged to perform additional work resulting from changes in assumptions unless expressly agreed through an approved Change Request.

**6. CHANGE MANAGEMENT**

Either Party may propose modifications affecting the scope, objectives, deliverables, timetable or commercial conditions of the Professional Services.

No requested modification shall become binding unless documented through an agreed Change Request.

Pending agreement of the Change Request, the Provider shall continue performing the Professional Services in accordance with the existing Statement of Work.

Where urgent action is reasonably necessary to preserve project continuity, the Parties shall cooperate in good faith to document the agreed modifications as soon as reasonably practicable.

**7. DELIVERABLES**

Deliverables shall be deemed completed when substantially conforming to the specifications agreed in the applicable Statement of Work.

Minor defects, formatting inconsistencies, cosmetic issues or matters that do not materially affect the intended use of a Deliverable shall not prevent its completion or acceptance.

The Provider may deliver project outputs progressively where appropriate.

Unless otherwise agreed, drafts, working papers, methodologies, templates, internal documentation, project notes and intermediate materials shall not constitute contractual Deliverables.

## 8. ACCEPTANCE

Where acceptance testing has been agreed, the Customer shall review each Deliverable within ten (10) Business Days following delivery.

If the Customer reasonably determines that a Deliverable does not materially comply with the agreed acceptance criteria, it shall provide a written description of the relevant deficiencies.

The Provider shall use commercially reasonable efforts to remedy any verified deficiencies within a reasonable period.

If no written rejection is received within the applicable acceptance period, or if the Deliverable is placed into productive use, the Deliverable shall be deemed accepted.

Acceptance shall not affect the Customer's statutory rights in relation to hidden defects that could not reasonably have been identified during acceptance testing.

## 9. CUSTOMER MATERIALS

The Customer remains solely responsible for the accuracy, completeness and legality of all documents, data, reports, financial information, specifications and other materials supplied to the Provider.

The Provider shall be entitled to rely upon the information provided by the Customer without independently verifying its accuracy unless expressly agreed otherwise.
The Provider shall not be responsible for errors arising from inaccurate, incomplete or outdated information supplied by the Customer.

## 10. PROJECT PERSONNEL

The Provider shall determine the personnel assigned to each engagement.

The Provider may replace individual consultants where reasonably necessary, provided that replacement personnel possess comparable qualifications and experience appropriate to the relevant engagement.

Nothing contained in these Professional Services Terms shall create an employment relationship between the Customer and any individual assigned by the Provider.

**11. KNOWLEDGE TRANSFER**

Where agreed in the applicable Statement of Work, the Provider shall provide reasonable knowledge transfer activities intended to facilitate the Customer's independent operation of ATEBIZ following completion of the engagement.

Knowledge transfer may include user training, administrative training, operational documentation and implementation workshops.

The Provider does not warrant that knowledge transfer activities will eliminate the Customer's future need for technical support or Professional Services.

**12. FEES**

Professional Services shall be invoiced in accordance with the applicable Statement of Work.

Unless otherwise agreed, fees may be calculated on a fixed-price, time-and-materials or milestone basis.

Reasonable travel and out-of-pocket expenses approved by the Customer may be invoiced separately.

Professional Services are independent of Subscription Fees.

The suspension or termination of the Subscription shall not affect the Customer's obligation to pay fees already accrued for Professional Services.

**13. INTELLECTUAL PROPERTY**

Each Party shall retain ownership of its respective Intellectual Property Rights.

The Provider retains exclusive ownership of all methodologies, frameworks, templates, implementation techniques, software tools, know-how, documentation standards, project methodologies and pre-existing materials used during the provision of Professional Services.

Upon full payment of the applicable fees, the Customer receives a non-exclusive, perpetual licence to use Deliverables specifically created for the Customer solely for its internal business purposes.

Nothing contained in these Professional Services Terms transfers ownership of the ATEBIZ software, source code, algorithms, generic templates, methodologies or reusable components.

Where improvements, ideas or general know-how are developed during the engagement, the Provider shall remain free to use such knowledge in future projects provided that Customer Confidential Information is neither disclosed nor incorporated into other customer deliverables.

**14. WARRANTIES**

The Provider warrants that Professional Services shall be performed with reasonable skill, care and diligence consistent with generally accepted professional standards applicable to comparable technology consulting services.

Except as expressly stated herein, no specific commercial, financial, accounting or operational result is guaranteed.

Professional opinions, recommendations and implementation guidance are based upon the information available at the relevant time and should not replace the Customer's own professional judgement.

**15. CONFIDENTIALITY**

Each Party acknowledges that, in connection with the Professional Services, it may receive or have access to Confidential Information belonging to the other Party.

Each Party undertakes to use such Confidential Information exclusively for the purposes of performing or receiving the Professional Services and shall not disclose it to any third party except to those employees, Affiliates, subcontractors or professional advisers who require access for the performance of their duties and who are bound by confidentiality obligations no less protective than those contained herein.

The Provider acknowledges that Customer information relating to financial reporting methodologies, internal control procedures, business strategies, corporate structure, commercial relationships and operational processes may constitute commercially sensitive information requiring enhanced protection.

Nothing contained herein shall prevent either Party from using residual knowledge, professional experience, skills or general know-how acquired during the

performance of the Professional Services, provided that no Confidential Information or Intellectual Property Rights belonging to the other Party are disclosed or misappropriated.

The confidentiality obligations established under this Clause shall survive termination of the Professional Services for a period of five (5) years or, in the case of trade secrets, for so long as such information retains its confidential character under applicable law.

The Parties undertake to maintain strict confidentiality with respect to any personal data to which they may have access or of which they may become aware in connection with the execution and performance of this Agreement, whether relating to themselves or to third parties, and to comply at all times with the applicable legislation governing the protection of personal data. Each Party shall independently comply with all applicable Data Protection Laws.

Where the provision of the Services requires Provider to access or process personal data for which the Customer acts as data controller, such processing shall be governed exclusively by the applicable Data Processing Agreement (DPA).

Each Party shall implement appropriate technical and organisational measures designed to protect Personal Data against accidental or unlawful destruction, loss, alteration, unauthorised disclosure or unauthorised access.

The Parties mutually acknowledge and agree that the personal data contained in this Agreement shall be processed for the purposes of managing their contractual relationship, formalising and administering the commitments arising therefrom, and complying with the respective legal obligations, contractual obligations and legitimate interests applicable to each Party, on the corresponding legal bases under applicable data protection legislation.

Such personal data shall be processed for the duration of the contractual relationship and, following its termination, for such period as may be required to comply with applicable legal or contractual retention obligations.

The personal data may be incorporated into the respective records maintained by each Party for the purposes of managing such relationship. The data subjects may, at any time, exercise the rights recognised under applicable data protection legislation, including the rights of access, rectification, erasure, data portability, restriction of processing and objection, by submitting a written request to the Party acting as controller of the relevant personal data at the address specified in this Agreement or at any other address subsequently notified for such purpose. They may also contact the relevant privacy officer or data protection contact of the respective Party using the same contact details.

Nothing in this clause shall prejudice the right of any data subject to lodge a complaint with the competent supervisory authority or to seek any other remedy available under applicable data protection legislation.

## 16. NON-SOLICITATION OF PERSONNEL

During the performance of the Professional Services and for a period of twelve (12) months following their completion, neither Party shall knowingly solicit for employment or engagement any employee or consultant primarily involved in the performance of the relevant Statement of Work without the prior written consent of the other Party.

This restriction shall not apply to recruitment resulting exclusively from general advertising campaigns, public recruitment processes or unsolicited applications submitted independently by the relevant individual.

Where such recruitment occurs in breach of this Clause, the injured Party shall be entitled to recover the reasonable costs directly incurred in replacing the relevant individual, without prejudice to any other remedies available under applicable law.

## 17. LIABILITY

The Provider shall be liable only for losses directly arising from its failure to perform the Professional Services in accordance with these Professional Services Terms.

Professional Services involve the application of professional knowledge and technical expertise to circumstances that may vary significantly depending upon the Customer's organisation, existing systems, internal processes and operational decisions.

Accordingly, the Provider does not warrant that any recommendation, implementation activity or project outcome will achieve a specific commercial, operational or financial objective.

To the fullest extent permitted by applicable law, the Provider shall not be liable for indirect or consequential losses, including loss of profits, loss of anticipated savings, business interruption, loss of opportunity, reputational damage or decisions adopted by the Customer following implementation of recommendations made during the engagement.

Except in cases of fraud, wilful misconduct or any liability which cannot lawfully be excluded, the aggregate liability of the Provider arising from a particular Statement of Work shall not exceed the total fees actually paid for that Statement of Work during the twelve (12) months immediately preceding the event giving rise to the claim.

The Parties acknowledge that the fees applicable to the Professional Services have been negotiated taking into account the allocation of risks established in these Professional Services Terms.

## 18. SUSPENSION OF SERVICES

The Provider may suspend the performance of Professional Services where such suspension is reasonably necessary to protect the security of the Service, comply with applicable law, address serious health or safety concerns, investigate suspected unlawful conduct or where the Customer materially breaches its obligations under these Professional Services Terms or the Agreement.

Where reasonably practicable, the Provider shall notify the Customer before implementing any suspension.

Any project timetable shall automatically be adjusted to reflect the duration of the suspension.

## 19. TERMINATION

Either Party may terminate an individual Statement of Work upon written notice if the other Party commits a material breach which remains unremedied thirty (30) days after receiving written notice requiring its remedy.

Termination of the Agreement shall automatically terminate all outstanding Statements of Work unless the Parties expressly agree otherwise.

Termination of a Statement of Work shall not affect any accrued payment obligations or any rights and obligations intended by their nature to survive termination.

Where a Statement of Work is terminated for reasons attributable to the Customer, the Provider shall be entitled to payment for all Professional Services performed up to the effective date of termination together with any unavoidable commitments reasonably incurred in connection with the engagement.

## 20. EFFECT OF TERMINATION

Upon termination of the Professional Services, the Provider shall deliver any completed Deliverables for which the applicable fees have been paid.

Unless otherwise agreed, draft materials, internal working documents, methodologies, project notes, implementation tools, quality assurance

documentation and other internal project materials shall remain the exclusive property of the Provider.

Each Party shall, upon request, return or securely destroy the Confidential Information of the other Party, subject to any legal retention obligations and routine backup procedures.

Termination shall not affect licences already granted in respect of accepted Deliverables unless otherwise expressly agreed.

## 21. INDEPENDENT CONTRACTOR

The relationship between the Parties is that of independent contracting parties. Nothing contained in these Professional Services Terms shall be construed as creating a partnership, joint venture, fiduciary relationship, agency or employment relationship between the Parties.

Neither Party shall have authority to bind or represent the other Party except where expressly authorised in writing.

## 22. SUBCONTRACTING

The Provider may engage qualified subcontractors to perform specific elements of the Professional Services provided that the Provider remains fully responsible for their performance.

Where subcontractors may have access to Confidential Information or Personal Data, the Provider shall ensure that appropriate contractual obligations concerning confidentiality, security and data protection are imposed before such access is granted.

The engagement of subcontractors shall not relieve the Provider from its obligations under these Professional Services Terms.

## 23. COMPLIANCE WITH APPLICABLE LAW

Each Party shall comply with all laws and regulations applicable to the Professional Services.

Without limitation, the Parties shall comply with applicable legislation concerning anti-bribery, anti-corruption, international sanctions, export controls, competition law, data protection, cybersecurity and intellectual property.

The Provider reserves the right to refuse any instruction that would require unlawful conduct or expose the Provider to regulatory or criminal liability.

## 24. GENERAL PROVISIONS

These Professional Services Terms, together with the applicable Statement of Work and the Agreement, constitute the entire agreement governing the Professional Services.

In the event of inconsistency, the following order of precedence shall apply:

1. the Statement of Work;
2. any negotiated Special Conditions;
3. these Professional Services Terms;
4. the General Subscription Terms and Conditions.

No amendment shall be effective unless agreed in writing by authorised representatives of both Parties.

If any provision is found invalid or unenforceable, the remaining provisions shall remain in full force and effect.

The failure of either Party to enforce any provision shall not constitute a waiver of future enforcement.

## 25. GOVERNING LAW AND DISPUTE RESOLUTION

These Professional Services Terms shall be governed by the law governing the Agreement.

The Parties shall seek to resolve any dispute through good faith negotiations between senior representatives before commencing formal proceedings.

Any dispute that cannot be resolved amicably shall be submitted to the courts or arbitral tribunal designated in the applicable Agreement or Statement of Work.
The language of the proceedings shall be English unless otherwise agreed.

**ATEBIZ**
**STATEMENT OF WORK**

under the Professional Services Terms

Version: [...]
Statement of Work No.: [...]
Date: [...]
Related Agreement: Professional Services Terms Version [...]
Customer: [...]
Provider: ATEBIZ
Project Name: [...]
Project Manager (Provider): [...]
Project Manager (Customer): [...]

## 1. PURPOSE

This Statement of Work ("**SOW**") is entered into pursuant to the Professional Services Terms forming part of the ATEBIZ Contractual Framework.

Its purpose is to define the Professional Services to be provided by the Provider in connection with the implementation, configuration, integration, optimisation or use of the ATEBIZ platform.

Unless expressly provided otherwise, all capitalised terms used in this SOW shall have the meanings assigned to them in the Professional Services Terms or the Common Definitions and Rules of Interpretation.

## 2. PROJECT OBJECTIVES

The objective of this engagement is to assist the Customer in successfully implementing and adopting ATEBIZ within its business environment.

The Professional Services may include one or more of the following activities, as specified below:
☐ Project initiation
☐ Functional workshops
☐ Technical onboarding
☐ API integration support
☐ Dashboard design
☐ Financial reporting configuration
☐ KPI design
☐ User training
☐ Administrator training
☐ Data mapping
☐ Testing support
☐ Go-Live assistance
☐ Hypercare
☐ Advisory Services
☐ Other:

## 3. SCOPE OF SERVICES

The Provider shall perform the following Professional Services:
[Detailed description.]

The Parties acknowledge that only the activities expressly described in this SOW form part of the agreed scope.

Any activity outside this scope shall constitute Additional Services subject to the Change Management procedure established in the Professional Services Terms.

## 5. DELIVERABLES
## 6.

The Provider shall deliver the following Deliverables:

| Deliverable | Description | Planned Delivery |
|---|---|---|
| D1 | | |
| D2 | | |
| D3 | | |

Deliverables shall be deemed accepted in accordance with the Professional Services Terms.

Minor defects not materially affecting usability shall not prevent acceptance.

## 5. PROJECT PLAN

The estimated project phases are:

| Phase | Estimated Duration |
|---|---|
| Kick-off | |
| Analysis | |
| Configuration | |
| Validation | |
| Training | |
| Go-Live | |
| Hypercare | |

All dates constitute planning estimates only.

Unless expressly agreed otherwise, project schedules do not constitute guaranteed completion dates.

## 6. CUSTOMER RESPONSIBILITIES

Successful delivery of the Professional Services requires active cooperation from the Customer.

The Customer shall: a) appoint a Project Manager; b) provide timely access to relevant personnel; c) make available required documentation; d) provide access to KONSOLIDATOR and related systems; e) validate Deliverables within the agreed acceptance periods; f) allocate sufficient internal resources.

Delays attributable to the Customer shall automatically extend the implementation schedule.

## 7. PROJECT ASSUMPTIONS

The Parties acknowledge that this SOW is based upon the following assumptions: a) KONSOLIDATOR is fully operational; b) API connectivity is available; c) customer Data has been prepared; d) key stakeholders remain available; e) required software licences have been activated; f) no material organisational restructuring occurs during the project.

Should any assumption prove materially inaccurate, the Parties shall review the project scope through the Change Management procedure.

## 8. EXCLUSIONS

Unless expressly included above, the Professional Services do not include: a) statutory consolidation; b) accounting validation; c) financial audit; d) tax advice; legal advice; e) ERP implementation; f) software custom development; g) migration of historical accounting records; h) data cleansing; i) verification of Customer Data; j) verification of reports generated from inaccurate source information.

## 9. SOURCE DATA

ATEBIZ operates as an analytics platform based upon Source Data originating from KONSOLIDATOR or other authorised systems.

The Provider does not verify the accounting accuracy, completeness or regulatory compliance of the Source Data.

The Customer remains solely responsible for validating all reports generated through ATEBIZ before relying upon them for accounting, statutory, tax, audit, regulatory or management purposes.

## 10. CUSTOMER MATERIALS

The Customer shall provide all documentation, data, credentials and other materials reasonably necessary for the performance of the Professional Services. The Provider may rely upon such information without independently verifying its accuracy.

## 11. PROJECT GOVERNANCE

Each Party shall appoint a Project Manager authorised to coordinate project activities.

Project Managers shall meet periodically to review project status, risks, dependencies, pending actions, deliverables and change requests.

Project meetings shall not modify this SOW unless expressly documented.

## 12. CHANGE MANAGEMENT

Any request affecting scope, Deliverables, timetable, assumptions or commercial conditions shall be managed through a written Change Request.

No Change Request shall become binding until approved by both Parties.

Pending approval, the Provider shall continue performing the Services according to the existing scope.

## 13. ACCEPTANCE

Acceptance shall be governed by the Professional Services Terms.

Where specific acceptance criteria apply, they are set out below:

| Deliverable | Acceptance Criteria |
|---|---|
| D1 | |
| D2 | |
| D3 | |

## 14. FEES

Commercial Model:
☐ Fixed Price
☐ Time & Materials
☐ Milestone Based
Professional Fees:
€
Travel Expenses:
€
Third-Party Costs:
€
Taxes:
Excluded.

## 15. INVOICING

Invoices shall be issued:
☐ Monthly
☐ Upon completion of milestones
☐ Upon acceptance
☐ Other

Payment Terms:
Thirty (30) days.

## 16. INTELLECTUAL PROPERTY

Ownership of Intellectual Property shall be governed exclusively by the Professional Services Terms.

Nothing contained in this SOW transfers ownership of ATEBIZ or any Provider Tools. Customer-specific Deliverables shall be licensed in accordance with the Professional Services Terms.

## 17. CONFIDENTIALITY

The confidentiality obligations established in the Professional Services Terms shall apply throughout this engagement.

## 18. PROJECT RISKS

The Parties acknowledge the following principal implementation risks:

| Risk | Mitigation |
|---|---|
| Delayed Customer approvals | Weekly governance meetings |
| Incomplete Source Data | Customer validation |
| API changes | Joint testing |
| Resource availability | Early planning |

## 19. DEPENDENCIES

The project depends upon: a) availability of KONSOLIDATOR; b) availability of authorised APIs; c) customer personnel; d) timely decisions; e) internet connectivity; f) third-party services where applicable.

The Provider shall not be responsible for delays caused by dependencies outside its reasonable control.

## 20. SIGNATURES

For and on behalf of ATEBIZ
Name:
Title:
Date:
Signature:

For and on behalf of Customer
Name:
Title:
Date:
Signature:

## APPENDIX A – PROJECT PLAN

(Gantt, milestones, resources.)

## APPENDIX B – RESPONSIBILITY MATRIX (RACI)

| Activity | Provider | Customer |
|---|---|---|
| Kick-off | R | A |
| Configuration | R | C |
| Testing | C | A |
| Training | R | C |
| Go-Live | R | A |

## APPENDIX C – CHANGE REQUEST FORM